

District-Chattogram
Tender No.89833

In the Supreme Court of Bangladesh
 High Court Division
 (Criminal Miscellaneous Jurisdiction)

Criminal Miscellaneous Case No. of 2024

In the matter of:

An application under section 526 of the Code of Criminal Procedure.

-And-

In the matter of:

Rashedul Islam

.... Accused-Petitioner

-Versus-

The State

....Opposite party

Mr. K. M. Saiful Islam, Advocate.

.... for the accused-petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

....For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 11th March, 2024

This application under Section 526 of the Code of Criminal Procedure at the instance of the accused Rashedul Islam of Session Case No.4821 of 2019 arising out of C.R. Case No.53 of 2019 (Panchalaish) under Section 138 of the Negotiable Instruments Act,

1881, now pending in the Court of learned Joint Sessions Judge, 2nd Court, Chattogram for transfer of above case to a competent Court for simultaneous trial with C.R. Case No.2203 of 2018 (Kotwali) now pending in the court of learned Additional Chief Metropolitan Magistrate, Chattogram.

Mr. K.M. Saiful Islam, the learned Advocate for the petitioner submits that the petitioner is the sole accused of Session Case No.4821 of 2019 arising out of C.R. Case No.53 of 2019 (Panchalaish) under Section 138 of the negotiable Instruments Act, 1881, now pending in the Court of learned Joint Sessions Judge, 2nd Court, Chattogram and the petitioner as complainant filed C.R. Case No.2203 of 2018 (Kotwali) above complaint under Section 420/406/467/472 of the Penal Code alleging that above cheques were obtained by fraud and forgery. Above case is pending in the Court of learned Additional Chief Metropolitan Magistrate, Chattogram for trial. The petitioner submitted a petition for transferring above case from the Court of Additional Chief Metropolitan Magistrate, Chattogram and sent the same to one competent Court of the Joint Metropolitan Sessions Judge, 2nd Court, Chattogram for simultaneously hearing. But the learned Additional Metropolitan Sessions Judge, 4th Court, Chattogram most illegality and without appreciating the legal and factual aspects of above case rejected

above petition vide impugned judgment and order dated 30.10.2023 which is not tenable in law.

Mr. Sujit Chatterjee, the learned Deputy Attorney General appearing for the State and submits that since the Session Case No.4821 of 2019 and C.R. Case No.2203 of 2018 (Kotwali) arose out of the identical cause the ends of justice will be better met if above case is tried simultaneously by one competent Court of Joint Metropolitan Session Judge. But the learned Additional Metropolitan Session Judge has failed to appreciate above materials on record and most illegality rejected the revision of the petitioner which is misconceived and not tenable in law.

We have considered the submissions of the learned Advocate for respective parties and carefully examined all materials on record.

It is not disputed that the opposite party as complainant filed Session Case No.4821 of 2019 under Section 138 of the Negotiable Instrument Act, 1881 against the petitioner and the petitioner filed C.R. Case No.2203 of 2018 (Kotwali) under Sections 406/420/380/467/472 of the Penal Code.

On conclusion of investigation of C.R. Case No.2203 of 2018 (Kotwali) police found prima facie truth in the allegations and filed a charge sheet. It was alleged in above C.R. Case No.2203 of 2018

(Kotwali) that the cheques of Session Case No.4821 of 2019 were stolen and fabricated by the complainant of above case.

Above two cases are pending for trial in two separate Courts of Metropolitan Joint Session Judge which could be tried simultaneously by one competent Court. But the petitioner did not seek simultaneous trial of above two cases to the learned Metropolitan Session Judge, Chattogram. Instead the petitioner filed a petition under Section 344 of the Code of Criminal Procedure in Session Case No.4821 of 2019 for stay of trial of above case till disposal of his C.R. Case No.2203 of 2018 (Kotwali).

The learned Joint Metropolitan Session Judge, 2nd Court, Chattogram rejected above petition and the petitioner preferred Criminal Revision No.715 of 2023 challenging the legality and propriety of above order of the learned Joint Metropolitan Session Judge and the learned Additional Session Judge rejected above Criminal Revision vide impugned order dated 30.10.2023.

Challenging the legality and propriety of above judgment and order dated 30.10.2023 passed by the learned Additional Metropolitan Session Judge in Criminal Revision No.715 of 2023 the petitioner moved to this Court with this petition under Section 526 of the Code of Criminal Procedure.

Since Session Case No.4821 of 2019 and C.R. Case No.2203 of 2018 (Kotwali) are pending for trial in two courts of Metropolitan Joint Session Judge, Chattogra under the supervision and control of Metropolitan Session Judge, Chattogra the petitioner should have filed a petition under Section 526 of the Code of Criminal Procedure to the learned Metropolitan Session Judge. Since no such petition under Section 526 of the Code of Criminal Procedure was filed to the learned Metropolitan Session Judge, Chattogram for transfer and simultaneous trial of above two cases this petition before us is premature which deserves no consideration.

In above view of the materials on record we are unable to find any substance in this petition which is summarily rejected.

Accordingly, this application under Section 526 of the Code of Criminal Procedure is rejected summarily.

Communicate this order to the court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER